

Complaint Report (CCRB)

CCRB Case No :	200810117	C/V Report Date :	Wed, 07/16/2008 08:50 AM
Complaint Type :	CCRB	Investigator :	Kathryn Duffy
Complaint Made At :	CCRB	Ref. No	
Received Date (CCRB) :	Wed, 07/16/2008 08:50 AM	Mode :	Phone
Incident Date(s) :	Fri, 07/04/2008 8:25 PM		
Place of Occurrence:	[REDACTED]	Precinct:	07
Location :	Park	Boro:	Manhattan
Reason for Initial Contact :	PD suspected C/V of violation/crime - street		
Charges:	Arrest - assault (against a PO)		

Complainant/Victim Details

Name:	[REDACTED]	Type:	Comp/Victim
Address:	[REDACTED]		
Contacts:	[REDACTED]	[REDACTED]	
	[REDACTED]	[REDACTED]	
	[REDACTED]		
Gender:	[REDACTED]	Ethnicity:	[REDACTED]
Person Assisting:	Brian Orlow	Date of Birth:	[REDACTED]
Injury Details:	<u>Type of Injury</u>	<u>Description</u>	
	Lacerations w/o Stitches	Cuts to both legs.	
Injury Details:	<u>Type of Injury</u>	<u>Description</u>	
	Bruise	Bruises to both legs and a black left eye.	
Injury Details:	<u>Type of Injury</u>	<u>Description</u>	
	Redness	Bloodshot right eye.	
Injury Details:	<u>Type of Injury</u>	<u>Description</u>	
	Other Injury	Lower back pain.	

Officer(s) Named in Complaint

Rank	Officer	S/W Officer	Tax No	Race	Cmd	Allegations/Board Dispositions
POM	Maurice Harrington	Subject Officer	[REDACTED]	Black	052	Nightstick as club (incl asp & baton) - (F) Substantiated (Charges)
POM	Joel Medina	Subject Officer	[REDACTED]	Hispanic	052	Nightstick as club (incl asp & baton) - (F) Exonerated
SGT	Robert Mainor	Witness Officer	[REDACTED]	Black	040	

Initial Complaint Narrative

This case is a duplicate of [REDACTED] which was referred by IAB and sent back to IAB because at that time no civilian filed a complaint. The narrative of the original referral follows: Sgt Mainor, stated that he is assigned to the [REDACTED] detail tonight. At 2025 hrs POM Harrington, and POM Medina were assigned to a park at [REDACTED] and were instructed not to permit any alcohol into the park. [REDACTED] became irate, challenging and confrontational towards the officers when they explained that no alcohol was permitted in the area and began to punch them when they requested to inspect his packages for alcoholic beverages. He was overcome, arrested and transported to [REDACTED] Hospital after being struck on the leg with an ASP baton.*****Narrative of complaint [REDACTED] was going to celebrate the 4th of July in a park on [REDACTED]. Two officers told him he could not come into the park with alcohol. [REDACTED] stated that he did not have alcohol in his bag, then dropped a bag of ice. Both officers got into a dispute with [REDACTED] then began striking him all over his body with their hands and batons. [REDACTED] was arrested and charged with [REDACTED]. He was taken to the 7th Precinct but believed that both PO1 and PO2 were from a Bronx precinct and were working a 4th of July detail in Manhattan, based on their statements. [REDACTED] suffered severe bruises and cuts to both legs, a black left eye and a bloodshot right eye, and pain to his lower back when PO1 sat on him while handcuffing him. He stated that he had a bad back. There were four or five other officers nearby, including PO3, who he believed was PO1 and PO2's supervisor because he seemed to be issuing them orders. [REDACTED] was taken to [REDACTED] Hospital. [REDACTED] has a videotape of this incident that was recorded by a friend and also stated that he has documented his injuries, which are still visible. PO1: Black male, 5'9", 200 pounds, black hair, no facial hair, wearing glasses, mid-late 20s, in uniform. Named "Huntington" or something similar. PO2: Hispanic male, 5'7", 180 pounds, bald/shaved head, no facial hair or glasses, mid-late 20s, in uniform. PO3: Black male, short, in blue uniform. A search of the BADS database reveals [REDACTED]'s arrest, [REDACTED] His arresting officer was PO Maurice Harrington of the 52 PCT.

Witness

Name of Witness:

Address:

Contacts:

Gender :

Ethnicity:

Date of Birth :

Name of Witness:

Address:

Contacts:

Gender :

Ethnicity:

Date of Birth :

Name of Witness:

Address:

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